

# SENATE . . . . . No. 403

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## The Commonwealth of Massachusetts

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PRESENTED BY:

***Jason M. Lewis***

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*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing a special commission to review the adequacy and equity of the  
Massachusetts school building program.

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PETITION OF:

| NAME:                      | DISTRICT/ADDRESS:                        |                  |
|----------------------------|------------------------------------------|------------------|
| <i>Jason M. Lewis</i>      | <i>Fifth Middlesex</i>                   |                  |
| <i>Rebecca L. Rausch</i>   | <i>Norfolk, Worcester and Middlesex</i>  | <i>1/23/2025</i> |
| <i>Joanne M. Comerford</i> | <i>Hampshire, Franklin and Worcester</i> | <i>2/4/2025</i>  |
| <i>James B. Eldridge</i>   | <i>Middlesex and Worcester</i>           | <i>2/11/2025</i> |
| <i>Michael O. Moore</i>    | <i>Second Worcester</i>                  | <i>3/10/2025</i> |
| <i>Dylan A. Fernandes</i>  | <i>Plymouth and Barnstable</i>           | <i>3/12/2025</i> |
| <i>Kathleen R. LaNatra</i> | <i>12th Plymouth</i>                     | <i>3/21/2025</i> |
| <i>Michelle L. Badger</i>  | <i>1st Plymouth</i>                      | <i>4/22/2025</i> |

# SENATE . . . . . No. 403

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By Mr. Lewis, a petition (accompanied by bill, Senate, No. 403) of Jason M. Lewis, Rebecca L. Rausch, Joanne M. Comerford, James B. Eldridge and others for legislation to establish a special commission to review the adequacy and equity of the Massachusetts school building program. Education.

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[SIMILAR MATTER FILED IN PREVIOUS SESSION  
SEE SENATE, NO. 309 OF 2023-2024.]

## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act establishing a special commission to review the adequacy and equity of the Massachusetts school building program.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

- 1           SECTION 1. (a) For the purposes of this section, “authority” shall mean the  
2   Massachusetts School Building Authority established in section 1A of chapter 70B of the  
3   General Laws.
- 4           (b) There shall be a special commission to study and make recommendations regarding  
5   the: (i) capacity of the authority to meet the needs of current and future school facility projects;  
6   and (ii) racial, ethnic, socioeconomic and geographic equity of the authority’s grant funding  
7   formula to ensure that all communities may participate in the program.

(c) The commission shall consist of: the chairs of the joint committee on education who shall serve as co-chairs; 1 member to be appointed by the senate president; 1 member to be appointed by the speaker of the house of representatives; 1 member to be appointed by the minority leader of the senate; 1 member to be appointed by the minority leader of the house of representatives; the secretary of education or a designee; the commissioner of elementary and secondary education or a designee; the executive director of the authority or a designee; 2 members to be appointed by the governor, 1 of whom shall be a representative of a gateway city with knowledge of municipal finance and 1 of whom shall be an individual with demonstrated expertise in the design and construction of cost-effective school buildings; 2 members to be appointed by the state treasurer, 1 of whom shall be an individual with demonstrated expertise in the design and construction of green buildings and 1 of whom shall be an individual with demonstrated expertise in public health and indoor environmental quality in school buildings; 1 member to be appointed by the Massachusetts Association of School Superintendents, Inc.; 1 member to be appointed by the Massachusetts Association of School Committees, Inc.; 1 member to be appointed by the Massachusetts Association of Vocational Administrators, Inc.; 1 member to be appointed by the Massachusetts chapters of the American Institute for Architects; 1 member to be appointed by the Massachusetts Facilities Administrators Association, Inc.; 1 member to be appointed by the Massachusetts Teachers Association; 1 member to be appointed by the American Federation of Teachers, Massachusetts; 1 member to be appointed by the Massachusetts Taxpayers Foundation, Inc.; 1 member to be appointed by the Massachusetts Municipal Association, Inc.; and 1 member to be appointed by the Massachusetts Building Trades Council.

(d) The commission shall investigate and make recommendations on: (i) the current and future need to renovate and rebuild school facilities, the availability of adequate state and local resources and the extent to which current state funding for the authority may need to be adjusted to meet this need; (ii) the authority's existing grant formula and potential modifications to the formula to ensure fairness and equity for all communities; (iii) the alignment of the authority's construction cost reimbursement rate relative to the actual cost of construction and other authority policies that impact eligible project costs for reimbursement; (iv) incentive percentage points including, but not limited to, how such incentive percentage points are calculated for municipalities that qualify for 80 per cent reimbursement; (v) reimbursement policies for regional technical and vocational schools and how to ensure affordability for all member communities; (vi) reimbursement policies to help the commonwealth achieve its environmental and greenhouse gas emissions reductions goals; (vii) reimbursement policies that support healthy school facilities for students and staff; (viii) whether the authority should be authorized to spend money on equipment or be limited to funding for education structures; (ix) whether the authority should add incentives for educational spaces approved under chapter 74 of the General Laws in programs that align with labor market demand; (x) strategies for addressing facilities needs of educational collaboratives; and (xi) any other issues affecting the ability of all students to attend school in high quality, accessible, safe, healthy and green school buildings.

(e) The authority and other state agencies shall make available to the commission any documents, data or materials in a timely manner when reasonably requested by the commission. The authority shall provide staff to assist the commission in completing its obligations under this section.

52           (f) The commission shall submit a report of its findings and recommendations to the  
53   clerks of the senate and house of representatives, the joint committee on education and the house  
54   and senate committees on ways and means not later than June 1, 2026.

55           SECTION 2. 7009-XXXX For the operation of the commission established under this  
56   act, including, but not limited to, staffing and administrative expenses..... \$250,000